

CHAPTER 32.

An Act to amend and continue the Rent and Mortgage Interest (Restrictions) Acts, 1920 to 1925. [18th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Duration
and applica-
tion of Acts.

1.—(1) The Rent and Mortgage Interest (Restrictions) Acts, 1920 to 1925 (hereinafter referred to as the principal Acts), shall continue in force until the twenty-fourth day of June, nineteen hundred and thirty-eight, and no longer.

(2) As from the twenty-ninth day of September, nineteen hundred and thirty-three, the principal Acts shall not apply to any dwelling-house unless it is a dwelling-house to which they applied immediately before the passing of this Act or then formed part of such a dwelling-house, and it is also a dwelling-house of which either the annual amount of the recoverable rent on the appointed day or the rateable value on the appointed day did not exceed—

- (a) in the metropolitan police district or the City of London, forty-five pounds;
- (b) in Scotland, forty-five pounds;
- (c) elsewhere, thirty-five pounds.

(3) Where any dwelling-house to which the principal Acts apply consists of or comprises premises licensed for the sale of intoxicating liquor for consumption on the premises, the principal Acts shall, as from the said twenty-ninth day of September or as from the date on which the premises are first so licensed, whichever is the later date, cease to apply to that dwelling-house.

(4) A person who, on the twenty-eighth day of September, nineteen hundred and thirty-three, is, by

virtue only of the principal Acts, tenant of a dwelling-house to which those Acts cease to apply as from the following day by virtue of the provisions of this section shall be entitled to retain possession of the dwelling-house until the date specified in a notice served upon the tenant under this subsection by or on behalf of the landlord after the passing of this Act, and shall be so entitled in like manner and subject to the like terms and conditions as if the principal Acts had not ceased to apply to the dwelling-house.

Any notice served under this subsection shall be in writing and shall inform the tenant, either that he is required to give up possession of the dwelling-house on the date specified in the notice, or that he will be so required unless before that date an agreement for a new tenancy has been made between the tenant and the landlord, so, however, that the date specified in any such notice shall be not earlier than the twenty-ninth day of September, nineteen hundred and thirty-three, and not earlier than one month after the service of the notice.

(5) The acceptance of rent or mesne profits by the landlord after the date specified in a notice served in respect of any dwelling-house under the last foregoing subsection shall not affect the validity of the notice, and if any such notice contains or is accompanied by an offer in writing of the terms upon which the landlord is willing to grant a new tenancy of the dwelling-house, and a written statement that, if the tenant retains possession of the dwelling-house after the date aforesaid without having made an agreement with the landlord on any other terms, he will by virtue of this Act be deemed to do so upon the terms so offered as aforesaid, then, if the tenant so retains possession, he shall be deemed to do so on those terms.

(6) Where upon the expiration of such a notice as aforesaid a tenant ceases to be entitled by virtue of this Act to retain possession of a dwelling-house, the provisions of the Landlord and Tenant Act, 1927, shall apply in respect of the premises as if they had been held under a lease (as defined by that Act) terminated

by that notice, and if, before the expiration of the notice, either—

- (a) the tenant has, under section five of that Act, served on the landlord a notice requiring a new lease of the premises; or
- (b) the landlord has, under section two or section four of that Act, served on the tenant notice that he is willing and able to grant to the tenant or obtain the grant to him of a renewal of the tenancy,

so much of the last foregoing subsection as provides that in the circumstances therein mentioned the tenant of a dwelling-house will, if he retains possession thereof after the expiration of a notice requiring him to give up possession, be deemed to do so upon terms offered by the landlord, shall not apply.

(7) Part II of the Act of 1923 (which contains provisions as to restrictions after the expiry of the principal Acts) is hereby repealed.

Certain dwelling-houses not to be excluded from principal Acts.

2.—(1) Subject as hereinafter provided, section two of the Act of 1923 (which provides for the exclusion of dwelling-houses from the application of the principal Act in certain cases) shall not apply to any dwelling-house of which the rateable value on the appointed day did not exceed—

- (a) in the metropolitan police district or the City of London, twenty pounds;
- (b) in Scotland, twenty-six pounds five shillings;
- (c) elsewhere, thirteen pounds:

Provided that the said section two shall apply to any such dwelling-house which consists of a part of premises whereof the rateable value on the appointed day exceeded the respective amount aforesaid, if the letting which constituted that part a separate dwelling-house to which the principal Acts apply was a subletting effected by a person who at the date of the subletting was entitled by virtue of the Rent Restrictions Acts to retain possession of the premises in which the sublet part was comprised, or would have been so entitled if he had not then had some other right to retain possession.

(2) If the landlord of any dwelling-house let as a separate dwelling immediately before the passing of this Act, being a dwelling-house of which the rateable value on the appointed day did not exceed the respective amount mentioned in the last foregoing subsection, claims that by virtue of the provisions of the said section two of the Act of 1923 the principal Acts had ceased to apply to the dwelling-house before the passing of this Act, he shall within three months after the passing of this Act make to the council of the county borough or county district in which the dwelling-house is situated application in the prescribed form for the registration of the dwelling-house, and if in any proceedings with respect to any dwelling-house which is, or immediately before the passing of this Act formed part of, such a dwelling-house as aforesaid, it is proved that but for the provisions of the said section two of the Act of 1923 the principal Acts would have applied to the dwelling-house and that no such application has been made by or on behalf of the landlord within the time aforesaid, the dwelling-house shall, subject as hereinafter provided, be deemed to be a dwelling-house to which the principal Acts apply:

Provided that if, on application to the county court of the district in which the house is situated, the court certifies that there was reasonable excuse for the failure to make application for the registration of the dwelling-house within the time aforesaid and application for registration is made within seven days after the certificate has been granted, then, if the principal Acts had ceased to apply to the dwelling-house before the passing of this Act, section two of the Act of 1923 shall, notwithstanding anything in the last foregoing subsection, apply to the dwelling-house as from the date on which the application for registration is made.

(3) For the purposes of this section it shall be the duty of the council of every county borough and of every county district to make and keep a register (which shall be open to public inspection at the office of the council during the usual office hours) and to register therein every dwelling-house with respect to which application is duly made in accordance with the provisions of this section.

(4) Any such council as aforesaid shall, on application being made to them by any person in that behalf, issue, on payment of a fee not exceeding one shilling, a certificate with respect to any dwelling-house in their borough or district stating whether or not the dwelling-house is registered under this section and, if registered, the date of registration; and any such certificate shall, unless the contrary is proved, be evidence that application for registration of the dwelling-house has or has not been made by or on behalf of the landlord and, in the case of a certificate of registration, be evidence of the date before which such application was made, so however that neither a certificate of registration nor other proof of the registration of any premises under this section shall be received as evidence as to whether or not the premises consist of or include a dwelling-house to which the principal Acts apply.

Any document purporting to be a certificate issued under this subsection by a council named therein, and to be signed by an officer of that council, shall be received in evidence and be deemed to be such a certificate without further proof unless the contrary is shown.

(5) If in any proceedings the court determines that any dwelling-house registered under this section is a dwelling-house to which the principal Acts apply, it shall be the duty of the registrar or clerk of the court to inform the council by whom the dwelling-house was registered, and, upon being so informed, that council shall forthwith cancel the registration of the dwelling-house, so, however, that the registration shall be restored if the decision of that court is reversed on appeal:

Provided that this subsection shall not apply to any dwelling-house with respect to which a certificate has been granted under subsection (2) of this section, unless the court has determined that the principal Acts had not ceased to apply to the dwelling-house before the passing of this Act.

(6) If any person, with intent to deceive, knowingly makes any false statement calculated to lead to the belief that a dwelling-house of which the rateable value on the appointed day did not exceed the respective amount mentioned in subsection (1) of this section is,

by virtue of the provisions of the said section two of the Act of 1923, not a dwelling-house to which the principal Acts apply, he shall be guilty of an offence and liable on summary conviction thereof to a fine not exceeding ten pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment.

3.—(1) No order or judgment for the recovery of possession of any dwelling-house to which the principal Acts apply or for the ejectment of a tenant therefrom shall be made or given unless the court considers it reasonable to make such an order or give such a judgment, and either—

Amend-
ments as to
restriction
on right to
possession.

- (a) the court has power so to do under the provisions set out in the First Schedule to this Act; or
- (b) the court is satisfied that suitable alternative accommodation is available for the tenant or will be available for him when the order or judgment takes effect.

(2) A certificate of the housing authority for the area in which the said dwelling-house is situated, certifying that the authority will provide suitable alternative accommodation for the tenant by a date specified in the certificate, shall be conclusive evidence that suitable alternative accommodation will be available for him by that date.

(3) Where no such certificate as aforesaid is produced to the court, accommodation shall be deemed to be suitable if it consists either—

- (a) of a dwelling-house to which the principal Acts apply; or
- (b) of premises to be let as a separate dwelling on terms which will, in the opinion of the court, afford to the tenant security of tenure reasonably equivalent to the security afforded by the principal Acts in the case of a dwelling-house to which those Acts apply,

and is, in the opinion of the court, reasonably suitable to the needs of the tenant and his family as regards proximity to place of work, and either—

- (i) similar as regards rental and extent to the accommodation afforded by dwelling-houses provided

in the neighbourhood by any housing authority for persons whose needs as regards extent are, in the opinion of the court, similar to those of the tenant and his family; or

(ii) otherwise reasonably suitable to the means of the tenant and to the needs of the tenant and his family as regards extent and character.

(4) For the purposes of the last foregoing subsection any certificate of a housing authority stating—

(a) the extent of the accommodation afforded by dwelling-houses provided by it to meet the needs of tenants with families of such number as may be specified in the certificate; and

(b) the amount of the rent charged by it for dwelling-houses affording accommodation of that extent,

shall be conclusive evidence of the facts so stated.

(5) Any document purporting to be a certificate of a housing authority named therein issued for the purposes of this section and to be signed by the clerk to that authority shall be received in evidence and be deemed to be such a certificate without further proof unless the contrary is shown.

Prevention
of excessive
charges for
sublet parts
of dwelling-
houses.

4.—(1) Notwithstanding anything in the last foregoing section, an order or judgment for the recovery of possession of a dwelling-house to which the principal Acts apply or for the ejectment of a tenant therefrom may be made or given where the court considers it reasonable so to do, if the court is satisfied that the rent charged after the passing of this Act by the tenant for any sublet part of the dwelling-house which is also a dwelling-house to which the principal Acts apply was in excess of the recoverable rent of that part.

(2) Where, in any proceedings under the last foregoing subsection for the recovery of possession of a dwelling-house or for the ejectment of a tenant therefrom, it appears to the court that neither an apportionment of standard rent as between the dwelling-house and the sublet part thereof nor a determination of the recoverable rent of the sublet part has previously been made by

the county court, the court shall make such an apportionment or determination, whether or not an order or judgment is made or given for the recovery of possession or the ejectment of the tenant.

(3) Where an apportionment of standard rent has been made by the county court as between a dwelling-house to which the principal Acts apply and any sublet part thereof which is also a dwelling-house to which the principal Acts apply, or where the county court has determined the recoverable rent of any such sublet part, then, if, after the apportionment or determination, the rent charged after the passing of this Act by the tenant for that sublet part is in excess of the recoverable rent of that part, the tenant shall, unless he proves that he did not know and could not by reasonable enquiry have ascertained that the rent charged by him was so in excess as aforesaid or that the excess was solely due to an accidental miscalculation, be guilty of an offence and liable on summary conviction thereof to a fine not exceeding one hundred pounds.

(4) Where the tenant of a dwelling-house to which the principal Acts apply has sublet any part thereof which is also a dwelling-house to which the principal Acts apply, the tenant shall within fourteen days after the subletting, or, in the case of a subletting effected before the date of the passing of this Act, within three months after that date, supply the landlord with a statement in writing of the subletting giving particulars of occupancy, including the rent charged, and if without reasonable excuse he fails to do so or supplies a statement which is false in any material particular, he shall be liable on summary conviction to a fine not exceeding ten pounds :

Provided that it shall not be necessary to supply a statement of the subletting of any such part as aforesaid where the particulars to be given therein as to the rent and other conditions of the sub-tenancy would be the same as in the last statement supplied in accordance with the requirements of this subsection with respect to a previous subletting of that part.

5. If in proceedings for the recovery of possession of a dwelling-house to which the principal Acts apply, not being a sublet part of another such dwelling-house, or for the ejectment of a tenant therefrom, the court

Exemption
from s. 5 of
Act of 1920
of certain

dwelling-
houses of
low value.

is satisfied that the recoverable rent of the dwelling-house in respect of which the proceedings are taken is not more than three shillings weekly and that the landlord or some person from whom he derives his title has since the passing of this Act been in possession thereof, section five of the Act of 1920 (which relates to restrictions on the right to possession and other like matters) shall not apply in relation to those proceedings.

Amendment
as to ascer-
tainment
of standard
rent.

6. If, in any proceedings in which the standard rent of any dwelling-house to which the principal Acts apply is required to be determined, the court is satisfied that it is not reasonably practicable to obtain sufficient evidence to enable the court to ascertain the rent at which the dwelling-house was let on the third day of August, nineteen hundred and fourteen, or, where the dwelling-house was not let on that date, the rent at which it was last let before that date, or, in the case of a dwelling-house which was first let after the said third day of August, the rent at which it was first let, the court shall have power to determine the standard rent as being, for the purposes of those proceedings, of such amount as the court thinks proper having regard to the standard rents of similar dwelling-houses in the neighbourhood, and as from the date on which any such determination is made under this section the standard rent of the dwelling-house shall, unless the court making the determination otherwise orders, be deemed for all purposes to be of that amount.

Amend-
ments as to
permitted
increase of
rent in re-
spect of im-
provements
and
structural
alterations.

7.—(1) For the purposes of paragraph (a) of sub-section (1) of section two of the Act of 1920, expenditure after the passing of this Act on the provision of additional or improved fixtures or fittings in a dwelling-house (not being expenditure on decoration or repairs) shall be deemed to be expenditure on the improvement of the dwelling-house.

(2) The county court shall not make an order under the proviso to the said paragraph (a) upon the application of any person unless he proves either—

(a) that he was the tenant when the expenditure was incurred and had not given his written consent to the improvement or alteration and the expenditure thereon; or

(b) that, the landlord having been in possession of the premises at the date when the expenditure

was incurred, the applicant is the first tenant subsequent to that date and became tenant without notice of the following particulars, that is to say—

(i) the nature of the improvement or alteration; and

(ii) the amount of the expenditure thereon; and

(iii) the amount of the maximum increase of rent chargeable on account thereof.

8.—(1) Where the recoverable rent of any dwelling-house to which the principal Acts apply is determined by any court, that court shall have power, on the application of the tenant, whether in those proceedings or in any subsequent proceedings, to call for the production of the rent book or any similar document relating to the dwelling-house and may direct the registrar or clerk of the court to correct any entries therein showing, or purporting to show, the tenant as being in arrear in respect of any sum which the court has determined to be irrecoverable. Rectifica-
tion of
rent books.

(2) Paragraph (b) of subsection (2) of section fourteen of the Act of 1920 (which relates to the refusal or neglect of landlords to delete from rent-books and similar documents entries purporting to show as arrears sums which are irrecoverable) shall have effect in relation to entries made after the passing of the Act of 1920 as well as in relation to entries made before that date, and in the said subsection (2) there shall be substituted for the words “unless he proves that he acted innocently and without intent to deceive” the words “unless he proves that
“ at the time of the making of the entry or of the neglect
“ or refusal to cause it to be deleted, as the case may be,
“ the landlord had a bona fide claim that the sum was
“ recoverable.”

9. Where any mortgaged property consists of or comprises one or more dwelling-houses to which the principal Acts ceased to apply as from the twenty-ninth day of September, nineteen hundred and thirty-three, by virtue of the provisions of section one of this Act, the principal Acts shall, until the expiration of the period of six months next after the passing of this Act, nevertheless have effect in relation to the mortgage as if those Temporary
continuance
of pro-
visions as to
mortgages
where pro-
perty de-
controlled
by this Act.

Acts had not ceased to apply to that dwelling-house or those dwelling-houses, and any question whether a mortgage is a mortgage to which those Acts apply, or whether or in what manner the principal moneys secured by a mortgage can be apportioned under subsection (5) of section twelve of the Act of 1920, shall be determined accordingly.

Powers
of local
authorities
for the
purposes
of giving
information.

10.--(1) The council of every county borough and of every county district shall have power to publish information, for the assistance of landlords and tenants, as to their rights and duties under the principal Acts, and as to the procedure for enforcing such rights or securing performance of such duties, and to furnish particulars as to the availability, extent, and character of alternative accommodation.

(2) The functions of a council under this section may in accordance with directions given by the council be exercised by a committee of the council appointed under this section or under any other enactment; and the council may appoint as additional members of any such committee for the purpose of exercising the said functions such persons as they think fit, whether members of the council or not.

(3) Any expenses incurred under this section by the council, or by any such committee as aforesaid with the permission or approval of the council by whom the committee was appointed, shall be defrayed out of the general rate.

Power of
local autho-
rities to
prosecute
offences.

11. The council of a county borough or county district in England shall have power to institute proceedings for any offence under the principal Acts or this Act.

Certificate
as to state
of repair.

12. Where the sanitary authority is satisfied that any dwelling-house to which the principal Acts apply is not in a reasonable state of repair, it shall be the duty of the authority to issue a certificate to that effect if application for such a certificate is made by the tenant of the dwelling-house, and, without prejudice to the generality of the foregoing provision, such a certificate shall not be refused if a notice requiring the execution of works in, or for the benefit of, the dwelling-house has been served under section seventeen of the Housing Act, 1930.

13. So much of paragraph (g) of subsection (1) of section twelve of the Act of 1920 as enacts that the expression "tenant" shall, in the case of a tenant dying intestate leaving no widow or being a woman, include such member of the tenant's family residing with him at the time of his death as may be decided in default of agreement by the county court shall not, as respects tenants dying after the passing of this Act, apply to any such member unless he was residing with the tenant for not less than six months immediately before the death.

Amendment
as to
application
of Acts in
relation to
family of
deceased
tenant.

14.—(1) The Minister of Health may make regulations prescribing—

Regula-
tions.

- (a) forms to be substituted for the form contained in the First Schedule to the Act of 1920;
- (b) the matters as to which notice is to be given to tenants of dwelling-houses to which the principal Acts apply by means of notices inserted in rent books and similar documents, and the forms of such notices;
- (c) the form of application for registration under section two of this Act.

(2) Upon the coming into force of regulations prescribing a form to be substituted for the form contained in the First Schedule to the Act of 1920, the form contained in the said Schedule shall cease to have effect.

(3) If any rent book or similar document which does not conform to the prescribed requirements is used by or on behalf of any landlord, the landlord shall be guilty of an offence and liable on summary conviction thereof to a fine not exceeding ten pounds.

(4) All regulations made under this section shall, as soon as may be after they are made, be laid before each House of Parliament, and if either House, within the next subsequent twenty-eight days on which that House has sat after any such regulations are laid before it, resolves that the regulations be annulled, the regulations shall thenceforth be void, but without prejudice to anything previously done thereunder or to the making of new regulations.

Application
to Scotland.

15. This Act shall, in its application to Scotland, be subject to the following modifications, that is to say :—

15 & 16
Geo. 5. c. 14.
15 & 16
Geo. 5. c. 15.

20 & 21
Geo. 5. c. 40.

(a) for any reference to the Minister of Health there shall be substituted a reference to a Secretary of State, for any reference to the Minister of Agriculture and Fisheries there shall be substituted a reference to the Department of Agriculture for Scotland, for any reference to the Housing Act, 1925, there shall be substituted a reference to the Housing (Scotland) Act, 1925, and for any reference to section seventeen of the Housing Act, 1930, there shall be substituted a reference to section fourteen of the Housing (Scotland) Act, 1930 :

(b) for any reference to the twenty-fourth day of June, nineteen hundred and thirty-eight, there shall be substituted a reference to the twenty-eighth day of May, nineteen hundred and thirty-eight, and for references to the twenty-eighth and twenty-ninth days of September there shall be substituted, respectively, references to the twenty-seventh and twenty-eighth days of November :

(c) “appointed day” means the sixteenth day of May, nineteen hundred and thirty-one; “assessed” means entered in the valuation roll; “intoxicating liquor” means exciseable liquor; “county court” means sheriff court; “sanitary authority” means a county or a town council; “mortgage” means a heritable security, including a security constituted by absolute disposition qualified by back bond or letter, and any reference to mortgaged property shall be construed accordingly; “licensing justices” means licensing court; and “licence” means a certificate as defined in Part VII of the Licensing (Scotland) Act, 1903 :

3 Edw. 7.
c. 25.

(d) for references to a county borough and a county district there shall be substituted respectively references to a burgh and a county :

(e) any expenses incurred by a county or town council under this Act or by any committee

under section ten of this Act shall be defrayed out of such rate payable by owners and occupiers in equal proportions as the council may determine:

- (f) "rateable value on the appointed day" in relation to any dwelling-house means, subject to the provisions of subsection (2) of section sixteen of this Act, the value shown as the rateable value with respect to that house in the valuation roll for the year beginning on the sixteenth day of May, nineteen hundred and thirty-one:
- (g) in determining for the purposes of the First Schedule to this Act whether any rent lawfully due from a tenant has or has not been paid in any case where the rent is payable in advance, any sums paid by the tenant in satisfaction of a decree or decrees for rent and expenses shall, if the action in which any such decree was obtained was raised before the expiry of the period in respect of which the rent sued for was due, be imputed wholly to rent and not to expenses:
- (h) where the landlord of a dwelling-house to which the principal Acts apply and of which the rent is payable in advance raises any proceedings for recovery of rent or for removing or ejection before the expiry of the period for which the rent sued for or in respect of the non-payment of which removing or ejection is craved is payable, the court shall not award any expenses to the landlord unless it considers it reasonable to do so after consideration of the whole circumstances of the case, including any offer made by the tenant prior to the bringing of the proceedings to pay the rent by instalments.

16.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

Interpreta-
tion.

"Appointed day" means, as respects the administrative county of London, the sixth day of April, nineteen hundred and thirty-one, and, as

respects the remainder of England, the first day of April, nineteen hundred and thirty-one;

“Dwelling-house” has the same meaning as in the principal Acts, that is to say, a house let as a separate dwelling or a part of a house being a part so let;

“Housing authority” means a local authority for the purposes of Part III of the Housing Act, 1925; and “area”, in relation to such an authority, means the area for supplying the needs of which the authority has powers under the said Part of that Act;

“Prescribed” means prescribed by regulations under this Act;

“Rateable value on the appointed day” in relation to any dwelling-house means, subject to the provisions of subsection (2) of this section, the value shown, with respect to that dwelling-house on that day in the valuation list then in force, as the rateable value or, where the net annual value differs from the rateable value, as the net annual value;

“Recoverable rent” means, in relation to any dwelling-house, the maximum rent which, under the provisions of the principal Acts, is or was recoverable from the tenant;

10 & 11
 Geo. 5. c. 17.

“Rent Restrictions Acts” means the principal Acts and the Acts repealed by the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920;

“The Act of 1920” means the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920;

13 & 14
 Geo. 5. c. 32.

“The Act of 1923” means the Rent and Mortgage Interest Restrictions Act, 1923.

(2) In relation to any dwelling-house of which the rateable value on the appointed day was not on that day separately assessed, references in this Act to rateable value on the appointed day shall be construed as references to such proportion of the rateable value on that day of the property in which the dwelling-house is comprised as may be apportioned to the dwelling-house by the county court in accordance with the provisions of subsection (3) of section twelve of the Act of 1920.

(3) References in this Act to the principal Acts or to any of them or to any provision of those Acts or of any of them shall, unless the context otherwise requires, be construed as references to those Acts, that Act or that provision, as the case may be, as amended by any subsequent enactment, including this Act.

(4) References in this Act to county boroughs and county districts and to the councils thereof shall be construed, for the purposes of the application of this Act to the City of London, as references to the City of London and the common council, and for the purposes of the application of this Act to the remainder of the administrative County of London, as references to metropolitan boroughs and the councils thereof.

17.—(1) The amendments in the second column of the Second Schedule to this Act (which relate to consequential matters and to matters of minor detail) shall be made in the enactments specified in the first column of that Schedule.

Consequential and minor amendments to principal Acts.

(2) In subsection (3) of section twelve of the Act of 1920 (which relates to the apportionment of rateable value) the references to rateable value shall be construed as including references to "rateable value on the appointed day" as defined by this Act.

18.—(1) This Act may be cited as the Rent and Mortgage Interest Restrictions (Amendment) Act, 1933, and this Act and the principal Acts may be cited together as the Rent and Mortgage Interest Restrictions Acts, 1920 to 1933.

Short title, citation, extent and repeal.

(2) This Act shall not extend to Northern Ireland.

(3) The enactments specified in the Third Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

SCHEDULES.

Sections 3
and 15.

FIRST SCHEDULE.

POSSESSION OR EJECTMENT WITHOUT PROOF OF ALTERNATIVE ACCOMMODATION.

A court shall, for the purposes of section three of this Act, have power to make or give an order or judgment for the recovery of possession of any dwelling-house to which the principal Acts apply or for the ejectment of a tenant therefrom without proof of suitable alternative accommodation (where the court considers it reasonable so to do) if—

- (a) any rent lawfully due from the tenant has not been paid, or any other obligation of the tenancy (whether under the contract of tenancy or under the principal Acts), so far as the obligation is consistent with the provisions of the principal Acts, has been broken or not performed;
- (b) the tenant or any person residing or lodging with him or being his sub-tenant has been guilty of conduct which is a nuisance or annoyance to adjoining occupiers, or has been convicted of using the premises or allowing the premises to be used for an immoral or illegal purpose, or the condition of the dwelling-house has, in the opinion of the court, deteriorated owing to acts of waste by, or the neglect or default of, the tenant or any such person, and, where such person is a lodger or sub-tenant, the court is satisfied that the tenant has not, before the making or giving of the order or judgment, taken such steps as he ought reasonably to have taken for the removal of the lodger or sub-tenant;
- (c) the tenant has given notice to quit, and, in consequence of that notice, the landlord has contracted to sell or let the dwelling-house or has taken any other steps as a result of which he would, in the opinion of the court, be seriously prejudiced if he could not obtain possession;
- (d) the tenant without the consent of the landlord has at any time after the thirty-first day of July, nineteen hundred and twenty-three, assigned or sublet the whole of the dwelling-house or sublet part of the dwelling-house, the remainder being already sublet;
- (e) the dwelling-house consists of or includes premises licensed for the sale of intoxicating liquor not to be

- * consumed on the premises, and the tenant has committed an offence as holder of the licence or has not conducted the business to the satisfaction of the licensing justices or the police authority, or has carried it on in a manner detrimental to the public interest, or the renewal of the licence has for any reason been refused :

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—cont.

- (f) the dwelling house is so overcrowded as to be dangerous or injurious to the health of the inmates, and the court is satisfied that the overcrowding could have been abated by the removal of any lodger or sub-tenant (not being a parent or child of the tenant) whom it would, having regard to all the circumstances of the case, including the question whether other accommodation is available for him, have been reasonable to remove, and that the tenant has not taken such steps as he ought reasonably to have taken for his removal ;
- (g) the dwelling-house is reasonably required by the landlord for occupation as a residence for some person engaged in his whole-time employment or in the whole-time employment of some tenant from him or with whom, conditional on housing accommodation being provided, a contract for such employment has been entered into, and either—
- (i) the tenant was in the employment of the landlord or a former landlord, and the dwelling-house was let to him in consequence of that employment and he has ceased to be in that employment ; or
 - (ii) the court is satisfied by a certificate of the county agricultural committee, or where there is no such committee, of the Minister of Agriculture and Fisheries, that the person for whose occupation the dwelling-house is required by the landlord is, or is to be, employed on work necessary for the proper working of an agricultural holding or as an estate workman on the maintenance and repair of the buildings, plant, or equipment, of agricultural holdings comprised in the estate ;
- (h) the dwelling-house is reasonably required by the landlord (not being a landlord who has become landlord by purchasing the dwelling-house or any interest therein after the eleventh day of July, nineteen hundred and thirty-one) for occupation as a residence for—
- (i) himself ; or
 - (ii) any son or daughter of his over eighteen years of age ; or
 - (iii) his father or mother :

1ST SCH.
 —cont.

Provided that an order or judgment shall not be made or given on any ground specified in paragraph (h) of the foregoing provisions of this Schedule if the court is satisfied that having regard to all the circumstances of the case, including the question whether other accommodation is available for the landlord or the tenant, greater hardship would be caused by granting the order or judgment than by refusing to grant it.

Section 17.

SECOND SCHEDULE.

CONSEQUENTIAL AND MINOR AMENDMENTS.

Provision to be amended.

Amendment.

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| Section 5 of the Act of 1920 | For subsection (1) there shall be substituted the provisions of section three and subsection (1) of section four of this Act and of the First Schedule thereto; and in subsection (7) for the reference to the grounds specified in paragraph (d) of subsection (1) of that section there shall be substituted a reference to the grounds specified in paragraphs (g) and (h) of the First Schedule to this Act. |
| Section 12 of the Act of 1920 | In subsection (9), the words from "but for the purpose of any enactment relating to rating" to the end of the subsection shall cease to have effect except in the application of the Act to Scotland. |
| Section 18 of the Act of 1923 | In subsection (2) there shall be substituted for the reference to paragraph (ii) of subsection (1) of section five of the principal Act, a reference to sub-paragraph (ii) of paragraph (g) of the First Schedule to this Act. |

THIRD SCHEDULE.

Section 18.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
10 & 11 Geo. 5. c. 17.	The Increase of Rent and Mortgage Interest Restrictions Act, 1920.	Subsection (1) of section five; in subsection (9) of section twelve the words from "but for the purpose of any enactment relating to rating" to the end of the subsection, except as respects Scotland; in subsection (2) of section fourteen the words "before the passing of this Act."
13 & 14 Geo. 5. c. 32.	The Rent and Mortgage Interest Restrictions Act, 1923.	Section four so far as it relates to subsection (1) of section five of the Act of 1920; and Part II.
14 & 15 Geo. 5. c. 18.	The Prevention of Eviction Act, 1924.	Section one.
15 & 16 Geo. 5. c. 32.	The Rent and Mortgage Interest (Restrictions Continuation) Act, 1925.	The whole Act except subsection (3) of section one thereof in so far as it amends section two of the Rent and Mortgage Interest Restrictions Act, 1923.
23 & 24 Geo. 5. c. 2.	The Expiring Laws Continuance Act, 1932.	Subsection (2) of section one and Part II of the Schedule.